

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-04

PORTS AMERICA CHESAPEAKE, LLC,

and

MARINE TERMINALS CORPORATION-EAST,

COMPLAINANTS,

v.

APS EAST COAST, INC.,

RESPONDENT.

COMPLAINANTS' MOTION TO COMPEL DOCUMENT REQUESTS

Pursuant to the Federal Maritime Commission's ("FMC") Rules of Practice and Procedure 46 C.F.R. § 502.146 and as required by the Status Conference on December 18, 2023, Complainants Ports America Chesapeake, LLC ("PAC") and Marine Terminals Corporation-East ("MTCE") (collectively "Complainants") by and through their undersigned attorneys, hereby move to compel Respondent APS East Coast, Inc. ("Respondent" or "AMPORTS") to provide certain documents requested in Complainant's Requests for Production ("RFP") and thus far withheld. In support thereof, Complainant states as follows:

BACKGROUND

On May 30, 2023, Complainants filed their verified complaint before the FMC, alleging that AMPORTS has engaged in a pattern of conduct in violation of the Shipping Act of 1984, 46

U.S.C. § 40101, et. seq. (the “Shipping Act”). The Complaint alleges violations of 46 U.S.C. § 41106(2) (Unreasonable Preference, Prejudice or Disadvantage); 46 U.S.C. § 41102(c) (Unreasonable Practices); and 46 U.S.C. § 41106(3) (Unreasonable Refusal to Deal). Due to AMPORTS’ actions, Complainants have incurred substantial damages.

Complainants issued combined requests for production of documents and interrogatories, and Respondent issued requests for production of documents, interrogatories and requests for admission separately on each of the Complainants. Complainants and Respondent exchanged written responses to the respective discovery requests and exchanged document productions. In response to AMPORTS’ discovery requests, Complainants produced 1,913 pages of documents, including corresponding metadata. In contrast, AMPORTS’ productions consisted of 281 pages of documents without any metadata, compiled into a single pdf file, and two unlabeled video files. In addition, significant portions of the production were redacted despite the parties having a confidentiality stipulation in place. As discussed below, AMPORTS’ production is materially deficient in key respects.

The parties endeavored to resolve the discovery disputes and filed a Joint Supplemental Status Report and Joint Request for Modification of the Scheduling Order on December 8, 2023. On December 11, 2023, the Presiding Officer granted the parties request for a modification of the scheduling order and also set a discovery status conference for December 18, 2023. At the status conference, the parties discussed the principal discovery disputes and agreed to continue to address certain open items but did not reach agreement on other issues. The Presiding Officer directed each party to file a motion to compel discovery on December 27, 2023 regarding discovery issues remaining unresolved.

LEGAL STANDARD

FMC Rules permit discovery “regarding any nonprivileged matter that is relevant to any party’s claim or defense.” 46 C.F.R. § 502.141(e)(1). As set forth in the Initial Order of June 21, 2023 in this proceeding, “[t]he parties are reminded of their obligation to ensure preservation of all relevant evidence, including electronically stored information. *Zhi Chen v. District of Columbia*, 839 F. Supp. 2d 7, 12 (D.D.C. 2011); *The Pension Comm. of the Univ. of Montreal Pension Plan v. Banc of America Securities, LLC*, 685 F. Supp. 2d 456 (S.D.N.Y. 2010); *Zubulake v. UBS Warburg LLC*, 220 F.R.D. 212 (S.D.N.Y. 2003).” Initial Order, 23-04, June 21, 2023, at 3. FMC Rule 150 authorizes the Presiding Officer to compel the production of information when a party fails to respond to a party’s discovery requests, has provided insufficient or inadequate responses, or hides behind spurious objections. 46 C.F.R. § 502.150.

INTRODUCTION

AMPORTS has failed to comply with its discovery obligations. As an initial matter, in response to Complainants’ nineteen (19) numbered document requests, expressly including requests for all emails and other written records of communications on relevant topics, AMPORTS produced only one pdf document consisting of 281 pages and two short video files. Nearly half of the documents (131 pages) are by AMPORTS’ admission publicly available information, including, for example, 76 pages from the Maryland Port Administration’s Maryland.gov websites. The remaining 150 pages are most remarkable for what they do not contain. Despite producing a very small number of email communications—which establishes that AMPORTS in fact used email on matters relevant to the requests—the production does not include evidence of electronic documents or communications on entire categories of requests, and the very small number of emails produced is not indicative of a sophisticated company with its headquarters in Jacksonville,

Florida, with significant operating locations on the east and west coasts, as well as international locations.

In addition, despite the small volume of emails produced, a number of emails reference attachments or contain other indications that other responsive emails and electronic documents exist but were not produced by AMPORTS. Counsel for AMPORTS represented that the document collection efforts were undertaken by company employees self-selecting documents, for example, by looking through their emails, and providing documents for counsel to review. The resulting production casts significant doubt on the fulsomeness of that collection effort. Additional issues are addressed specifically below.

DISPUTED REQUESTS AND ARGUMENT

Request for Production No. 3: “Produce all Documents and Communications in AMPORTS’ possession, custody or control in connection with or relating to the Competitive Bidding Process, including the proposing, planning, implementing, or approving thereof.”

AMPORTS’ Response: “Respondent directs Complainants to APS 0042-0049, 0051- 0100, and 0144-0157.”

Argument: In response to Complainants’ RFP No. 3, AMPORTS directs Complainants to APS 0042-0049, 0051- 0100, and 0144-0157 of its production. APS 0042-0049 are three email chains between AMPORTS and three stevedoring companies to which AMPORTS sent its request for proposals on March 9, 2022. APS 0051-0100 are a selection of email communications between AMPORTS and the stevedoring companies, between January 2022 (before the March 2022 Request for Proposal) to July 25, 2022, which appear to contain the responses of the stevedoring companies and some communications with AMPORTS relating to the responses. The small volume of documents produced contain indication of other responsive documents that were not included in AMPORTS production. For example, APS 0090 (and other copies of the same email repeated in the production) is an email dated June 3, 2022, from Ceres Global (“Ceres”) to AMPORTS in which Ceres refers to “[t]he revised offer we gave.” APS 0051 is a January 4, 2022, email from Ceres stating, “I just followed up with Jake [Brown]”, but no email communications

between Ceres and Mr. Brown on or prior to that date were produced. While Mr. Brown is identified as a project leader for AMPORTS' competitive bidding process, only two emails from Mr. Brown are provided in the entire production. An email communication dated May 10, 2022, between Ben Buben (AMPORTS) and Doug Hansen (Ceres), states "let me know when you have review [sic] the agreement and we can discuss" (APS 0088). There are no emails showing an agreement being provided to Ceres. APS 0100, an email exchange between Ceres to AMPORTS on July 25, 2022 refers to the then draft of the preferred stevedoring agreement with Ceres, noting that AMPORTS "[m]ade a couple of changes to the Ceres agreement for you to review" and in response Ceres appears to respond to one of the changes, but the production does not contain the referenced draft or any other draft of the agreement. Finally, APS 0144-0157 appears to be a copy of the final preferred stevedoring agreement, titled "License and Stevedoring Agreement for the Atlantic & Chesapeake Terminal, MD," but the production does not include any proposed drafts, or any email communications of drafts, which the emails indicate was exchanged electronically. AMPORTS clearly has additional documents in its possession, custody and control responsive to RFP No. 3, which it has, without legitimate justification, failed to produce.

Request for Production No. 4: "Produce all Documents and Communications in AMPORTS' possession, custody or control in connection with or relating to the consideration, deliberation, establishment, publication, notification, application, enforcement, forbearance or waiver, invoicing, disputes, and collection of the Access Fee."

AMPORTS' Response: "Respondent objects to this Request on the grounds that it seeks information not reasonably calculated to lead to the discovery of admissible evidence and is overly broad as to scope. Respondent further objects to the extent the relevant requested documents are within Complainants' possession, custody, and control. Subject to and without waiving the foregoing objections, Respondent limits its response to its Baltimore Terminals and the Relevant Time Period as well as the consideration, deliberation, establishment, publication, notification, and application of the Access Fee. The Access Fee has not been waived nor granted forbearance for any party."

Argument: AMPORTS objects to RFP No. 4 on the grounds that documentation and communication related to the Access Fees are not "reasonably calculated to lead to the discovery of admissible evidence." Complainants' complaint sets forth in significant detail that AMPORTS has engaged in a practice and policy of affording different and unequal treatment to automobile stevedores in the Port of Baltimore through its purported licensing of stevedores and its assessment of punitive access fees for unlicensed or non-preferred stevedores. See Complaint Count I, ¶¶ 48-

54, and ¶¶ 28-47, including paragraphs 34 and 35 specifically referring to representations on behalf of AMPORTS on December 29, 2022 that it would “temporarily suspend the collection” of the Access Fee. Therefore, documentation and/or communication related to the “consideration, deliberation, establishment, publication, notification, and application” of the Access Fee is highly relevant to Complainants’ claims.

AMPORTS objected to the production of *any* documents in response to RFP No. 4. However, Complainant’s own production clearly establishes that AMPORTS communicated regarding the subject of the request, for example:

- Letter of December 29, 2022, (APS 0118) referring to the temporary suspension of the Access Fee.
- Email communication (PA_0001601) from ACL Cargo to PAC dated April 6, 2023, stating it received a letter (PA_0001602) from AMPORTS advising that beginning April 10, 2023 the Access Fee will be assessed.
- Email communication (PA_0000019) from AMPORTS to PAC dated May 23, 2023 inquiring about payment status for the Access Fee. The email also included six attachments, which were not produced by AMPORTS (PA_0000020-0000026). *See also* PA_0000111.
- Email communication (PA_0001857) from MOL Group to PAC dated June 8, 2023 advising that they had received invoices (PA_0001858-0001860) from AMPORTS for the Access Fee.

Nor is it credible that what little was produced reflects all of the documented “consideration, deliberation, establishment, publication, notification, and application of the Access Fee” which the production shows was a project that was underway for more than a year. This Request is clearly likely to lead to the discovery of relevant and/or admissible evidence, and the information being sought is relevant to Complainants’ claims. Further, the request seeks documents in AMPORTS’ possession, custody and control responsive to RFP No. 4, which it has, without legitimate justification, failed to produce.

Request for Production No. 5: “Produce all Documents and Communications in AMPORTS’ possession, custody or control in connection with or relating to (a) the Stevedoring Announcement, (b) OEM Customers pertaining to RO/RO Stevedoring Services, and (c) the ‘existing stevedoring agreements currently in place at our locations’ as referenced in the Stevedoring Announcement.”

AMPORTS’ Response: “Respondent objects to this Request on the grounds that it is a compound request stating three separate requests. Respondent further objects to this Request on the grounds that it seeks information not reasonably calculated to lead to the discovery of admissible evidence and is overly broad as to scope (Request 5(b)). Respondent further objects to this Request to the extent that it seeks materials protected by the attorney-client privilege (Request 5(a) and 5(b)). Respondent further objects to this Request to the extent that it is vague and unclear (Request 5(b)). Subject to and without waiving the foregoing objections, Respondent limits its response to its Baltimore Terminals and the Relevant Time Period. Respondent directs Complainants to APS 0042-0049, 0051- 0100, 0144-0157, 0101, 0106, and 0111.”

Argument: AMPORTS again cites to APS 0042-0049 and APS 0051-0100, presumably as to the stevedoring announcement topic in item 5(a), also discussed above. AMPORTS also refers to the agreement between Ceres and AMPORTS signed October 25, 2022 (APS 0144-0157) but no communications related to the agreement. AMPORTS further cites to APS 0101, APS 0106 and APS 0111, all copies of the November 1, 2022 Stevedoring Announcement, but provides no further communications (internal or external) related to its creation or dissemination. With respect to item 5(b), AMPORTS stated in response to interrogatory requests that its OEM customers include Stellantis, GM, Mazda, and Honda, but has failed to provide any communications or documents pertaining to RO/RO Stevedoring Services relating to those customers. As to item 5(c), AMPORTS’ Stevedoring Announcement, and other communications produced, such as APS 0090, refer to existing stevedoring at AMPORTS locations, but the production does not include such relevant communications or documents. AMPORTS clearly has additional documents in its possession, custody and control responsive to RFP No. 5, which it has, without legitimate justification, failed to produce.

Request for Production No. 6: “Produce all Documents and Communications in AMPORTS’ possession, custody or control in connection with or relating to Rule 34 2 of the AMPORTS Tariff, including consideration, deliberation, drafts, and decisions.”

AMPORTS’ Response: “Respondent objects to this Request on the basis that it is overly broad with regards to scope, not reasonably calculated to lead to the discovery of admissible evidence, and to the extent it requests attorney-client communications or attorney work product. Subject to and without waiving the foregoing objections, Respondent responds that Rule 34 2 of Respondent’s Tariff is publicly available.”

AMPORTS’ 12/26/2023 Supplemental Interrogatory Response: “Our supplemental response regarding Complainants’ Interrogatory No. 10 is that with respect to Rule 34-2 of Respondent’s tariff, it was filed on January, 25 2021 for an effective date of February 1, 2021. A further version was filed on December 30, 2022 for an effective date of January 1, 2023.”

Argument: AMPORTS lodges inadequate, boiler-plate objections “on the grounds that it seeks information not reasonably calculated to lead to the discovery of admissible evidence and is overly broad as to scope.” This request is not overbroad because it seeks information on a specific tariff rule directly relevant to Complainants’ claims, including with respect to AMPORTS’ selection of a preferred stevedore and assessment of an Access Fee, and the AMPORTS “customers” to which the Access Fees purportedly applied. As represented in AMPORTS’ supplemental interrogatory response, at least two versions were filed, but no communications or documents relating to the filings themselves, nor any “consideration, deliberation, drafts, and decisions” relating thereto, were produced. Because AMPORTS publishes its tariff online through the tariff publisher Descartes, it would have, at a minimum, communicated with Descartes regarding the two electronic publications that AMPORTS admits were made. Nevertheless, AMPORTS has failed to produce *any* Documents responsive to RFP No. 6, with no legitimate basis for withholding such responsive documents.

Request for Production No. 7: “Produce all Access Fee invoices.”

AMPORTS’ Response: “Respondent objects to this Request on the basis that it is not reasonably calculated to lead to the discovery of admissible evidence, and that such relevant information is within the custody, control, and possession of Complainants.”

Argument: The relevance of documents related to AMPORTS’ Access Fee to Complainants’ claims cannot be disputed. AMPORTS is obligated to produce all documents “regarding any nonprivileged matter that is relevant to [Complainants’] claim...” 46 C.F.R. § 502.141(e)(1); *see also Johnson v. Kraft Foods N. Am., Inc.*, 236 F.R.D. 535, 541 (D. Kan. 2006) (“a party may not unilaterally withhold information or documents that are responsive to a discovery request” based on that party’s own interpretation of relevance”). AMPORTS has failed to produce any Documents responsive to RFP No. 7, with no legitimate basis for withholding such responsive documents. Moreover, Complainants’ own production reflects that AMPORTS has relevant documents in its possession responsive to RFP No. 7:

- Email communication (PA_0001601) from ACL Cargo to PAC dated April 6, 2023 stating it received a letter (PA_0001602) advising that beginning April 10 the Access Fee will be assessed.
- Email communication (PA_0000019) from AMPORTS to PAC dated May 23, 2023 inquiring about payment status for the Access Fee. The email also included six attachments, which were not produced by AMPORTS (PA_0000020-0000026). See also PA_0000111.
- Email communication (PA_0001857) from MOL Group to PAC dated June 8, 2023 advising that they had received invoices (PA_0001858-0001860) from AMPORTS for the Access Fee.

Notwithstanding the objection that “such relevant information is within the custody, control, and possession of Complainants,” it does not appear from the limited production that the representation is accurate, and even as to the Access Fee invoices that Complainants received outside of AMPORTS’ production (including those produced in Complaints’ production), Complainants are not in a position to know that it has all such invoices in light of AMPORTS’ objections. AMPORTS should produce all such documents in its possession, custody and control responsive to RFP No. 7, or if AMPORTS contends that it has produced all such invoices, AMPORTS should be directed to confirm that it has produced all responsive documents.

Request for Production No. 8: “Produce Documents in AMPORTS’ possession, custody or control reflecting Complainants’ or Ports America ‘health and safety track records,’ ‘the ability to ensure sufficient and consistent dockside labor,’ and reflecting RO/RO stevedoring performance and efficiency at AMPORTS Baltimore Terminals.”

AMPORTS’ Response: “Respondent object to this Request on the basis that such information is fully within Complainants’ possession, custody or control. Subject to and without waiving the foregoing objection, Respondent directs Complainants to two provided videos.”

Argument: In response to RFP No. 8, AMPORTS refers to two unlabeled videos less than two minutes in length. AMPORTS has failed to provide any additional responsive documents or communications, including no internal communications. AMPORTS’ does not object to the relevance of the request, which among other things pertains to the specific allegations in paragraph 38(d) of the Complaint reflecting the March 31, 2023 assertions made on behalf of AMPORTS regarding alleged factors employed in its preferred stevedore selection process. If, as AMPORTS’

response implies, the two videos are the entirety of documentation and/or communications in Respondent's possession, custody or control responsive to this request, AMPORTS should be directed to confirm that it has produced all responsive information.

Request for Production No. 9: "Produce all Documents relating to deliberation, consideration, and negotiation of agreements entered into with AMPORTS' Preferred Stevedores., and any payments or other remuneration provided thereunder."

AMPORTS' Response: "Respondent objects to this Request on the basis that it is overly broad as to scope. Respondent further objects to this Request to the extent that it seeks materials protected by the attorney-client privilege. Respondent limits its response to its Baltimore Terminals and the Relevant Time Period. Subject to and without waiving the foregoing objections, Respondent directs Complainants to APS 0042-0049, 0051- 0100, and 0144-0157."

Argument: AMPORTS again cites to APS 0042-0049 and AP 0051- 0100, which as noted above are deficient, and further, reveal that AMPORTS has failed to provide information in its possession, custody, or control. See RFP No. 3. Further, AMPORTS cites to APS 0144-0157, which appears to be the agreement between Ceres and AMPORTS, digitally signed on October 25, 2022. As noted above, AMPORTS has failed to provide communications (internal or external) related to the negotiation of that agreement. Furthermore, AMPORTS has not produced any communications or documents pertaining to "payments or other remuneration provided thereunder" which the referenced agreement indicates would, or should, have occurred. AMPORTS clearly has information in its possession, custody and control responsive to RFP No. 9, which it has, without legitimate justification, failed to produce.

Request for Production No. 10: "Produce all Documents relating to any evaluations, presentations, and/or reports made relating to the consideration, negotiation and selection of Preferred Stevedores."

AMPORTS' Response: "Respondent directs Complainants to APS 0036–0041, 0042-0049, 0051- 0100, and 0144-0157."

Argument: AMPORTS cites to APS 0036–0041, which includes heavily-redacted minutes of a single advisory Board of Directors meeting for AMPORTS dated November 17, 2021, at which "no formal approvals were ratified." (APS 0036). There is reference to a discussion on "operational efficiencies and stevedoring services" and three slides of a presentation on stevedoring services at controlled terminals noting that AMPORTS was "In discussion with [three

stevedores (not including Complainants)] researching the feasibility of stevedoring vessels at controlled facilities (Benicia, Atlantic/Chesapeake, Antioch),” but no other responsive information. Further, AMPORTS again cites to APS 0042-0049, APS 0051- 0100, and APS 0144-0157, which as noted above, reveal that AMPORTS has failed to provide additional documentation in its possession, custody, or control. *See* RFP No. 3.

Request for Production No. 11: “Produce all contracts and agreements between AMPORTS and its OEM Customers having RO/RO cargo loaded or discharged at the AMPORTS Baltimore Terminals.”

AMPORTS’ Response: “Respondent objects to this Request on the basis that it is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence. Respondent further objects on the basis that this Request is over broad.”

AMPORTS’ 12/26/2023 Supplemental Interrogatory Response: “OEM Contracts (RFP No. 11): We are in the process of reviewing the applicable OEM contracts and will revert regarding terminal access provisions.”

Argument: AMPORTS has failed to produce any documents responsive to RFP No. 11. AMPORTS has lodged inadequate, boiler-plate objections on the basis that it is “irrelevant and not reasonably calculated to lead to the discovery of admissible evidence...further objects on the basis that this Request is over broad.” This request is not overbroad because it seeks information related to RO/RO cargo loaded or discharged at the AMPORTS Baltimore Terminals, which is directly related to Complainants’ claims. As noted in AMPORTS’ supplemental response on December 26, 2023, it “is in the process of reviewing the applicable OEM contracts and will revert regarding terminal access provisions.” We note that the potential relevance of the requested contracts includes any matters relating to “RO/RO cargo loaded or discharged at the AMPORTS Baltimore Terminals” including but not limited to, ocean carrier access provisions, cargo damage liability and indemnification obligations. Complainants request that AMPORTS be directed to produce all documents in its possession, custody or control responsive to RFP No. 11.

Request for Production No. 12: “Produce all contracts and agreements between AMPORTS and Ocean Carriers loading or discharging RO/RO cargo at AMPORTS Baltimore Terminals.”

AMPORTS' Response: "Respondent objects to this Request on the basis that it is overly broad as to time frame. Respondent limits its response to the Relevant Time Period. Respondent directs Complainants to APS 0273-0281 and further states that discovery on this request is continuing."

Argument: AMPORTS cites to APS 0273-0281, which is a contract between AMPORTS and Hoegh Autoliners, a Ro-Ro shipping company. No other documents were produced. In AMPORTS' production it provided letters in response to the Stevedoring Announcement from Wallenius Wilhelmsen Ocean (APS 0104), K Line (APS 0112-0117), and MOL Americas LLC (APS 0112-0117), all RO/RO ocean carriers with whom AMPORTS communicated regarding stevedoring agreements. AMPORTS indicated that "discovery on this request is continuing," but additional responsive information had not been provided. Complainants request that AMPORTS confirm that APS 0273-0281 is the entirety of documentation in Respondent's possession, custody or control responsive to RFP No. 12 or produce such responsive documents.

Request for Production No. 14: "Produce all contracts and agreements between AMPORTS and any stevedore providing RO/RO Stevedoring Services at an AMPORTS Baltimore Terminal during the Relevant Time Period (regardless of the subject of such contract or agreement)."

AMPORTS' Response: "Respondent objects to this Request on the basis that it is duplicative of Request No. 13. Subject to and without waiving the foregoing objection, Respondent directs Complainants to APS 0144-0157."

Argument: AMPORTS cites to APS 0144-0157, which is an agreement between AMPORTS and Ceres that was signed October 25, 2022. No other documents were produced. Complainants contend RFP No. 14 is not duplicative of RFP No. 13, as RFP No. 13 relates to contracts or agreements with Preferred Stevedores and RFP No. 14 relates to any stevedore providing RO/RO Stevedoring Services at an AMPORTS Baltimore Terminal. Complainants request that AMPORTS confirm that APS 0144-0157 is the entirety of documentation in Respondent's possession, custody or control responsive to RFP No. 14 or produce such responsive documents.

Request for Production No. 15: "Produce all Documents and Communications reflecting analysis, consideration memorandums, presentations, marketing plans, business plans, productions, and the like, relating to contemplated use of Preferred Stevedores and/or Access Fees."

AMPORTS' Response: "Respondent objects to this Request on the basis that it is overly broad as to time and scope. Respondent further objects to this Request on the basis that it is duplicative of Requests No. 4 and No. 5. Respondent further objects to the extent that the Request seeks materials protected by the attorney-client privilege. Respondent limits its response to its Baltimore

Terminals and the Relevant Time Period. Subject to and without waiving the foregoing objection, Respondent directs Complainants to APS 0036-0041.”

Argument: AMPORTS again cites to APS 0036–0041, which includes minutes of a single advisory Board of Directors meeting in November 2021. There is reference to a discussion on “operational efficiencies and stevedoring services” and three slides on stevedoring services at controlled terminals. No other documents were produced. AMPORTS contends that RFP No. 15 is duplicative of RFP Nos. 4 and 5. The information requested is not duplicative as RFP No. 15 is requesting memorandums, presentations, marketing plans, business plans, and productions related to the Preferred Stevedores and/or Access Fees. Whereas RFP No. 4 relates to communications and documentation on the Access Fee, and RFP No. 5 relates to (a) the Stevedoring Announcement, (b) OEM Customers pertaining to RO/RO Stevedoring Services, and (c) the “existing stevedoring agreements currently in place at our locations” as referenced in the Stevedoring Announcement. In any event, each of those responses are deficient. AMPORTS has documents in its possession, custody and control responsive to RFP No. 15, which it has, without legitimate justification, failed to produce.

Request for Production No. 16: “Produce all resolutions, board minutes, and board presentations (or their equivalent) in connection with or relating to deliberation or decision relating to a Preferred Stevedore or Access Fee.”

AMPORTS’ Response: “Respondent objects to this Request on the basis that it is overly broad as to time and scope. Respondent limits its response to its Baltimore Terminals and the Relevant Time Period. Subject to and without waiving the foregoing objection, Respondent directs Complainants to APS 0036-0041.”

Argument: AMPORTS cites to APS 0036–0041, which as noted above reflects minutes of one advisory board meeting in November 2021, and three slides, at which no approvals were ratified. No other documents were produced. Complainants request that AMPORTS be directed to produce all documents in its possession, custody or control responsive to RFP No. 16.

Metadata:

In addition to the specific matters addressed above, specifically pertaining to emails and other electronic communications and documents, Complainants' document requests specifically requested production of electronically stored information as follows:

"16. Unless otherwise agreed, all ESI should be produced in native format in the original electronic file format(s) of the Documents. Specifically, and in no way limiting the generality of the foregoing, PowerPoint presentations, and data compilations, such as Excel spreadsheets, shall be produced in native format."

"17. All ESI should be produced so that it includes all versions, including versions with track changes and/or hidden content exposed. Unless otherwise agreed, Documents maintained or stored in paper, hard-copy form shall be produced as searchable .PDF (i.e., portable Document format files with embedded text) and in an appropriate and usable manner. In addition, it is requested that all Documents and Communications be produced as .TIFF images with Relativity load files (.DAT and .OPT) and searchable text (i.e., OCR) and all associated metadata."

AMPORTS did not object to the requested form of production, either with respect to native production, the request for metadata, or the preferential request for production in load file format. Instead, the production was produced in one PDF (and two video files), without any metadata (excepting that the PDF was text searchable). As to PDFs, although that was an option for hard-copy origin documents, counsel indicated that AMPORTS purportedly looked through their emails, and the small number of emails produced do not appear to have been hard copy printouts later scanned for the purposes of production. Metadata is an important tool in discovery and is readily available when ESI is collected in a customary fashion (including collection that is not conducted forensically by third-party vendors, but when pulled from email systems by client IT staff and provided for internal review in PST formats). Complainants produced their documents with metadata in relativity load file format, and Complainants request that AMPORTS be directed to produce its ESI at a minimum in a manner that retains all metadata, and/or in native formats, or in an acceptable format such as relativity load file format with metadata.

CONCLUSION

For the foregoing reasons, Complainants respectfully requests that the Presiding Officer issue an Order compelling AMPORTS to promptly produce all requested documents and to respond completely to the requests identified herein forthwith.

Dated: December 27, 2023

Respectfully Submitted,

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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